

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005674

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: NICO STEINER

vs.

DEFENDANT: CITY OF SAN RAFAEL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant City of San Rafael’s (“City”) motion for summary judgment or, alternatively, summary adjudication is **DENIED**.

Background

This is a personal injury matter relating to a pool inflatable. Plaintiff Nico Steiner (“Plaintiff”) alleges that on August 13, 2023, he used the “AquaDash” inflatable obstacle course at the Terra Linda Community Pool. (First Amended Complaint (“FAC”), p. 4.) Plaintiff was 46 years old at the time and stood at five feet, eleven inches tall. (*Ibid.*) According to the FAC, the AquaDash was placed in an area where the pool was only about four feet deep. (*Ibid.*) Plaintiff alleges that on the date in question, there was no sign advising swimmers to refrain from using the AquaDash based on age or height considerations. (*Ibid.*) Plaintiff allegedly slipped from the AquaDash and fell into the water head first, hitting his head on the bottom of the pool. (*Ibid.*) The FAC asserts causes of action for dangerous condition of public property and general negligence against the City and ten unidentified City agents or employees.

Before the Court is the City’s motion for summary judgment, or, alternatively, summary adjudication.

Legal Standard

Any party may move for summary judgment. (Code of Civ. Proc, § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th 826, 843.) Similarly, a party may move for summary adjudication as to a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication . . . shall proceed in all procedural respects as a

motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).) The object of the summary judgment procedure is “to cut through the parties’ pleadings” to determine whether trial is necessary to resolve the dispute. (*Aguilar, supra*, 25 Cal.4th 826, 843.)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (*Aguilar, supra*, 25 Cal.4th 826, 850; see Evid. Code, § 110.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar, supra*, 25 Cal.4th 826, 851.) When the moving party is the defendant, the initial burden entails showing “that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Once the moving party has met its initial burden, the burden shifts to the opposing party to “show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subds. (p)(1)-(2).) “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th 826, 845.)

Discussion

Procedural Matters

The City’s Compliance with the Rules of Court

The rules governing motions for summary adjudication require the moving party to specify the issues on which summary adjudication is sought and describe those issues identically throughout the moving papers. (See Cal. Rules of Court, rule 3.1350(b).) The City has not complied with this rule, as its description of the issues varies greatly between its notice of motion and its separate statement.

A separate statement in support of a motion for summary adjudication “must separately identify . . . [e]ach cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion” and “[e]ach supporting material fact claimed to be without dispute *with respect to* the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.” (Cal. Rules of Court, rule 3.1350(d)(1) [emphasis added].) This requires the separate statement to be divided up by issue, listing all facts relevant to a given issue under a subheading for that issue. (See Cal. Rules of Court, rule 3.1350(h).) The obvious purpose of this rule is to enable the opposing party and the court to easily determine which facts they must contend with to defeat or decide the motion (whatever the case may be) *as to each issue*. (See *Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74.) The City’s separate statement does not set forth the City’s purportedly undisputed material facts by reference to the five issues described in the City’s notice of motion. It enumerates the City’s proffered undisputed material facts by reference to Plaintiff’s two causes of action and then offers the same exact set of 47 facts as to each. The result is that the City’s separate statement does not enable either the opposing party or the court to determine, on an issue-by-issue basis, which facts are relevant.

A moving party’s failure to comply with the separate statement requirement “may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd.

(b)(1); see also *Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 876 [“Trial courts should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate statement[.]”.) Plaintiff has not objected to the City’s noncompliance with the rules or indicated any confusion about which issues the City seeks to have summarily adjudicated. (See Opposition, p. 1.) Accordingly, the Court will not deny the motion on this procedural basis. The City is admonished to follow all applicable procedural rules moving forward.

Plaintiff’s Evidentiary Objections: All overruled.

The City’s Requests for Judicial Notice: All granted. (Evid. Code, § 452, subd. (d).)

The City’s Response to Plaintiff’s Responsive Separate Statement: The Court has not considered this document. The summary judgment statute does not provide for a “reply separate statement.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 306 [abrogated in unrelated part as stated in *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 853, fn. 12].)

Merits

Issue 1: “Plaintiff has not established a dangerous condition of public property existed as defined under Government Code § 830 (a), as required to sustain a cause of action under Government Code § 835 et al.”

Government Code, section 835 “sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property.” (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.) To hold the public entity liable, the plaintiff must “establish[] that the property was in a dangerous condition at the time of the injury[.]” (Gov. Code, § 835.)

A “[d]angerous condition” is “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830, subd. (a).) “Whether property is in a dangerous condition often presents a question of fact, but summary judgment is appropriate if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines that no reasonable person would conclude” that the condition met the statutory standard. (*Mathews v. City of Cerritos* (1992) 2 Cal.App.4th 1380, 1382.)

The City heavily implies that Plaintiff was not using the AquaDash “with due care in a manner in which it is reasonably foreseeable that it will be used” (Gov. Code, § 830, subd. (a)) and that this precludes any argument that the AquaDash was in a “dangerous condition.” (See Memorandum, pp. 8-9.)

First, even if Plaintiff did use the AquaDash in an unforeseeable manner or without due care, that would be irrelevant to the issue of whether the AquaDash was in a dangerous condition. (See *Fredette v. City of Long Beach* (1986) 187 Cal.App.3d 122, 131 & fn. 6.) “The negligence of a plaintiff-user of public property . . . is a defense which may be asserted by a public entity; it has

no bearing upon the determination of a ‘dangerous condition’ in the first instance. So long as a plaintiff-user can establish that a condition of the property creates a substantial risk to *any* foreseeable user of the public property who uses it with due care, he has successfully alleged the existence of a dangerous condition regardless of his personal lack of due care.” (*Id.* at p. 131 [internal citations omitted]; accord *Mathews, supra*, 2 Cal.App.4th 1380, 1384 [“Reasonably foreseeable use with due care, as an element in defining whether property is in a dangerous condition, refers to use by the public generally, not the contributory negligence of the particular plaintiff who comes before the court; the particular plaintiff’s contributory negligence is a matter of defense.”].) By contrast, “[i]f . . . it can be shown that the property is safe when used with due care and that a risk of harm is created only when foreseeable users fail to exercise due care, then such property is not ‘dangerous’ within the meaning of section 830, subdivision (a).” (*Fredette, supra*, 187 Cal.App.3d 122, 131.)

Second, the City never articulates in what manner Plaintiff was supposedly misusing the AquaDash, let alone presents evidence that he was in fact using it in such a way. In fact, the City offers as an undisputed fact that the circumstances of Plaintiff’s fall were as follows: “While navigating the AquaDash, Plaintiff stepped over the first obstacle and passed under the second. At the third obstacle, which also required stepping over, Plaintiff’s foot caught, causing him to lose his balance.” (UMF No. 4.) The City itself states that this is exactly how the AquaDash is intended to be used. (See Memorandum, p. 16 [“[T]he AquaDash is a recreational inflatable obstacle course set over a swimming pool. Participants must step over, duck under, and navigate a series of obstacles on an unstable surface while maintaining their balance over water.”]; *id.* at p. 17 [“the activity is built around” the “central physical challenge” of maintaining “one’s footing” while navigating the course].) The cases the City cites in connection with this argument involved plaintiffs who were behaving in ways that were *plainly dangerous* given the obvious features of the property. (See, e.g., *Fredette, supra*, 187 Cal.App.3d 122, 124 [plaintiff dove headfirst into water that was visibly so shallow as to make diving “hazardous”; no dangerous condition given that “no reasonable person could conclude that a swimmer, exercising due care and confronted with the notice that the condition itself provided, would have used the pier as a diving platform”]; *Mathews, supra*, 2 Cal.App.4th 1380, 1385 [child plaintiff rode his bicycle “down a very steep, wet, grassy hill”; no dangerous condition, given that the danger of doing this is “obvious from the appearance of the property itself, even to children”].) Even according to the City, Plaintiff did not do anything that is obviously dangerous to do in four feet of water unless one considers an adult using the AquaDash in the intended fashion dangerous at that depth. If that were the case, it would counsel *in favor* of the AquaDash being in a dangerous condition at the time of Plaintiff’s injury due to its placement in four feet of water and the fact that the City was allowing adults to use it. (UMF Nos. 15, 17, 31.)

The City next argues that the AquaDash was not in a dangerous condition as a matter of law because the AquaDash’s manufacturer approved the City’s AquaDash installation design plans prior to installation and the City adhered to the manufacturer’s written guidelines for placement. This argument is premised on the idea that if a product’s manufacturer approved of the way a defendant used a product, and/or if the defendant adhered to the manufacturer’s instructions, the defendant is, as a matter of law, immune from liability for injuries associated with the product’s use, regardless of whether the manufacturer’s specifications were sufficient to render the product

reasonably safe. The City presents no authority for this,¹ and it is intuitively incorrect. On this theory, had the City put the AquaDash in one foot of water with the manufacturer's blessing, the bare fact of the manufacturer's approval would absolve the City of liability even though the AquaDash would obviously be dangerous under those circumstances. Whatever the AquaDash's manufacturer said, a jury could reasonably conclude that, given that the fun of the AquaDash comes from falling into the pool and the City was letting adults use it (UMF 31), placing the AquaDash such that a substantial portion of it was in water much less deep than almost any adult is tall (four feet, UMF Nos. 15, 17) "create[d] a substantial (as distinguished from a minor, trivial or insignificant) risk of injury" when the AquaDash was "used with due care in a manner in which it [was] reasonably foreseeable that it [would] be used." (Gov. Code, § 830, subd. (a).)

Finally, the City argues that the AquaDash's accident-free history means it was not in a dangerous condition as a matter of law. The City concedes that an accident-free history is not dispositive of whether a dangerous condition existed. (*Salas v. Department of Transportation* (2011) 198 Cal.App.4th 1058, 1071; *Lane v. City of Sacramento* (2010) 183 Cal.App.4th 1337, 1346.) It contends, however, that the City's AquaDash's unproblematic history is "strong evidence that the AquaDash did not constitute a dangerous condition[.]" particularly "combined with the City's compliance with manufacturer specifications and the open and obvious nature of the risk[.]" (Memorandum, p. 11.) When ruling on a motion for summary judgment or adjudication, the Court is not permitted to weigh evidence the way the City is inviting it to here. Its job is to determine whether the City's showing compels the conclusion that, as a matter of law, Plaintiff *cannot establish* that a dangerous condition existed. (Code Civ. Proc., § 437c, subd. (p)(2).)

Summary adjudication is DENIED as to this issue.

Issue 2: "Plaintiff cannot establish the City created or had actual or constructive notice of the alleged dangerous condition as required by Government Code § 835.2 et al."

In addition to proving the existence of a dangerous condition at the time of the injury, a plaintiff seeking to hold a public entity liable for injuries caused by a dangerous condition of public property must establish "that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." (Gov. Code, § 835; *Brown, supra*, 4 Cal.4th 820, 829.)

A plaintiff who opts to show that the public entity's employee created the dangerous condition must show not merely that the employee's conduct created the condition, but also that such conduct was negligent. (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1136.) The City's argument that Plaintiff cannot do this rests on the idea that the AquaDash's manufacturer

¹ The closest the City comes to supporting this with authority is the following, citing *Fredette, supra*, 187 Cal.App.3d 122, 131 and *Mathews, supra*, 2 Cal.App.4th 1380, 1383: "[T]he absence of [a warning sign restricting AquaDash use to people aged 6-14 and a maximum of 5'10" tall] does not itself establish a dangerous condition where the hazard is open and obvious *and the property was operated in compliance with manufacturer specifications.*" (Memorandum, p. 10 [emphasis added].) Neither *Fredette* nor *Mathews* discusses the defendant's compliance with a product manufacturer's specifications or instructions.

approved the City's installation design plans for the AquaDash before City made the course available to the public and that the City fully complied with the manufacturer's instructions. (Memorandum, p. 12.) Assuming for purposes of argument that these facts are true, the City does not offer any authority for the idea that they establish that no City employee acted negligently in relation to the AquaDash, or that the City is otherwise immune from liability, as discussed above. The City also points out that "[a] lifeguard was stationed at the AquaDash during its operation[.]" (Memorandum, p. 12) The City does not explain how this compels the conclusion that no City employee acted negligently in creating a dangerous condition. A failure to install, or permit use of, the AquaDash in the manner a reasonably prudent person would under the circumstances (see *Minnegren v. Nozar* (2016) 4 Cal.App.5th 500, 507) may be negligent regardless of the presence of a lifeguard the same way any potentially injurious conduct may be negligent even if done within a hospital. The City also argues that "the City's rules of use were actively enforced." (*Ibid.*) That City employees were not negligent in their enforcement of the City's rules of use, even if true, does not preclude their negligently causing the AquaDash to constitute a dangerous condition. The AquaDash could have constituted a dangerous condition even if the City flawlessly enforced its rules of use. Here, Plaintiff's claim is that the AquaDash was in a dangerous condition because it was placed in inappropriately shallow water (FAC, p. 4), so pointing out that the City was enforcing its rules of use is simply not responsive to the claim.

The City has not demonstrated that, accepting for purposes of argument that the AquaDash was in a "dangerous condition," no "negligent or wrongful act or omission of an employee of [the City] within the scope of his employment created" that condition. (Gov. Code, § 835, subd. (a).) Because the City has not foreclosed the possibility that Plaintiff may hold it liable under Section 835(a), the Court has no occasion to address whether the City has shown that it cannot be held liable as a matter of law under Section 835(b) (actual or constructive notice). (See *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 945 [where a defendant has failed to foreclose an avenue to liability, the trial court is to conclude that the defendant failed to carry its burden and deny the motion for summary judgment].)

Summary adjudication is DENIED as to this issue.

Issue 3: "The City has established the affirmative defense of waiver bars Plaintiff's cause of action for dangerous condition of public property, as alleged under Government Code § 835 et al."

On the date of the incident, Plaintiff signed a sign-in sheet labeled "TERRA LINDA COMMUNITY POOL REC SWIM." (UMF No. 44; City's Ex. D.) The sign-in sheet reads in part: "I HAVE READ THE HOLD HARMLESS AND RELEASE AGREEMENT AND FULLY UNDERSTAND THE I [sic] ASSUME RISKS FOR ANY INJURIES AND PROPERTY DAMAGES SUFFERED. IN ADDITION, I HAVE READ ASSUMPTION OF THE RISK AND WAIVER OF LIABILITY TO CORONAVIRUS/COVID19." (UMF 46; City's Ex. D.)

The Hold Harmless and Release Agreement itself was not a part of the sign-in sheet. The City offers evidence that it was "posted at the entrance[.]" (Younkin Dec., ¶ 17.) The Hold Harmless and Release Agreement provides:

“The undersigned on behalf of himself/herself and on behalf of any child enrolled by the undersigned in the program, in consideration of participation in this program, agrees to indemnify and hold harmless, and to release, waive, and discharge, the City of San Rafael against any claim, demand, suit, judgment, loss, liability or expense of any kind, . . . on account of personal injuries or damages sustained by any person or property arising out of or in any way connected with participation by the undersigned or the enrolled child in this program, including injuries due to the active or passive negligence of the City, its officers, employees, agents, and volunteers. . . . I recognize that bodily injury and/or property damage may be sustained through participation in this activity and acknowledge that I/we voluntarily accept all risks of injury to persons or property.”

(City’s Ex. D.)

A plaintiff’s express contractual assumption of a risk – that is, his signing a release or a waiver agreement – may preclude liability for negligence by negating the element of duty. (*Benedek v. PLC Santa Monica, LLC* (2002) 104 Cal.App.4th 1351, 1356; *Sweat v. Big Time Auto Racing, Inc.* (2004) 117 Cal.App.4th 1301, 1304.) “In order for a release of liability to be held enforceable against a plaintiff, it ‘must be clear, unambiguous and explicit in expressing the intent of the parties’; the act of negligence that results in injury to the releasee must be reasonably related to the object or purpose for which the release is given; and the release cannot contravene public policy.” (*Sweat, supra*, 117 Cal.App.4th 1301, 1304-1305 [quoting *Madison v. Superior Court* (1988) 203 Cal.App.3d 589, 598] [internal citations omitted].)

In *Whitehead v. City of Oakland* (2025) 17 Cal.5th 735, the Supreme Court observed that “under [S]ection 835[,] public entities owe members of the public a ‘duty not to maintain public premises in a dangerous condition.’ ” (17 Cal.5th 735, 748-749 [quoting *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1133].) *Whitehead* held that releases precluding actions arising from a violation of this statutory duty violate Civil Code, section 1668 (relating to contracts contrary to public policy) and are unenforceable. (*Whitehead, supra*, 17 Cal.5th 735, 750-751.) The City acknowledges that Plaintiff is suing it for an alleged violation of its statutory duty, under Government Code, section 835, to refrain from maintaining public property in a dangerous condition. (See Notice of Motion, p. 1 [description of Issue Nos. 1 and 4], Memorandum, p. 7.) Under *Whitehead*, the release is unenforceable to the extent it purports to bar an action against the City for negligent violation of its statutory duty under Section 835.

Also, the Court is not persuaded that the release is clear and unambiguous and considers this a jury issue. (See *Sweat, supra*, 117 Cal.App.4th 1301, 1304-1305.) The Hold Harmless and Release Agreement purports to waive actions arising out of injuries sustained from participation in an unidentified “program[.]” (UMF No. 47; Ex. D.) It does not specify what “program” it is referring to beyond making clear that adults “enroll[.]” their children in it. (City’s Ex. D.) This is not a natural way to refer to mere “use of the pool,” which is what the City contends the release covers (Memorandum, p. 15), or use of an inflatable obstacle course within the pool. Elsewhere, the release refers to the activity at issue simply as “the above-mentioned activity” (it is not described above this point beyond references to “the program”) or “this activity[.]” (City’s Ex. D.) The release does not, as the City argues, “describe[] the activity” at issue. (Memorandum, p. 15.)

Summary adjudication is DENIED as to this issue.

Issue 4: “The City has established the affirmative defense of primary assumption of risk bars Plaintiff’s cause of action for dangerous condition of public property, as alleged under Government Code § 835 et al.”

The primary assumption of risk doctrine is “a rule of limited duty[.]” (*Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1154.) The doctrine applies “to activities classified as sports, . . . as well [as] to other recreational activities ‘involving an inherent risk of injury to voluntary participants . . . where the risk cannot be eliminated without altering the fundamental nature of the activity.’ ” (*Id.* at p. 1156 [quoting *Beninati v. Black Rock City, LLC* (2009) 175 Cal.App.4th 650, 658].) Primary assumption of risk “precludes liability for injuries arising from those risks deemed inherent” in the activity. (*Avila v. Citrus Community College Dist.* (2006) 38 Cal.4th 148, 161.) “[A]s a matter of law, others have no legal duty to eliminate those risks or otherwise protect a sports participant from them.” (*Ibid.*) “A risk is inherent in a sport if its elimination (1) would chill vigorous participation in the sport; and (2) would alter the fundamental nature of the activity.” (*Sanchez v. Hillerich & Bradsby Co.* (2002) 104 Cal.App.4th 703, 713.)

Where primary assumption of risk applies, “operators, instructors and participants in the activity owe other participants only the duty not to act so as to *increase* the risk of injury over that inherent in the activity.” (*Nalwa, supra*, 55 Cal.4th 1148, 1154 [emphasis in original]; accord *Luna v. Vela* (2008) 169 Cal.App.4th 102, 111.) “If it is determined that the actions of a defendant did increase the risk of harm above that inherent in the sport, primary assumption of risk is not available[.]” (*Sanchez, supra*, 104 Cal.App.4th 703, 712.)

The use of an inflatable obstacle course on water involves an inherent risk of falling into the water. That risk is what makes the obstacle course fun. But that the risk of slipping and falling into the water is inherent in use of an aquatic obstacle course does not preclude a determination that the City unreasonably increased the inherent risk that Plaintiff would be injured by a fall from the AquaDash. Similarly, the inherent risk that a baseball player may be injured by “a sharply batted ball” did not preclude liability in *Sanchez, supra*, 104 Cal.App.4th 703, where the plaintiff presented evidence that the bat manufactured by the defendant substantially increased this risk. (104 Cal.App.4th 703, 715 [defense motion for summary judgment denied].) That running into an object while skiing is an inherent risk of the sport did not preclude liability where the defendant ski resort “increased the risk of harm by placing a signpost in the ski run where it was virtually invisible to skiers[.]” (*Van Dyle v. S.K.I. Ltd.* (1998) 67 Cal.App.4th 1310, 1317-1318 [defense motion for summary judgment denied].) “As a general rule, where an operator can take a measure that would increase safety and minimize the risks of the activity *without also altering the nature of the activity*, the operator is required to do so.” (*Grotheer v. Escape Adventures, Inc.* (2017) 14 Cal.App.5th 1283, 1300 [emphasis in original].)

Where a plaintiff alleges that a defendant’s conduct increased the risk to the plaintiff beyond that inherent in an activity, and the defendant moves for summary judgment on the basis that the primary assumption of risk doctrine obviated its duty to the plaintiff, it is the defendant’s burden to establish that its conduct did not increase the risk of harm beyond that inherent in the sport. (*Luna, supra*, 169 Cal.App.4th 102, 112.) For example, in *Vine v. Bear Valley Ski Co.* (2004) 118 Cal.App.4th 577, 591, the plaintiff alleged that the nature of the defendant’s snow board jump increased the risk of injury to snowboarders above that inherent in the sport. (118 Cal.App.4th 577, 591.) Given this allegation, the First District observed that “in order to

establish it owed no duty to [the plaintiff] because she had assumed the risk of injury, [the defendant] had to show either that its jump did not increase the inherent risks of snowboard jumping, or that whatever defects the jump may have had were included in those risks.” (*Ibid.*) The defendant “attempted neither showing in its moving papers, contending merely that falling is an inherent risk of the sport.” (*Ibid.*) The First District stated that this was “not sufficient” to shift to the plaintiff “the burden of raising a triable issue of fact as to whether the jump posed risks beyond those inherent in snowboard jumping.” (*Ibid.*) As a result, “the [trial] court’s denial of [a defense motion for] summary judgment on primary assumption of risk was clearly correct.” (*Ibid.*)

In this case, Plaintiff’s complaint alleges that the City’s employees “substantially increased [AquaDash] users’ risk of significant bodily injury should they fall off the AquaDash” by placing the AquaDash in an insufficiently deep part of the pool, allowing people taller than the manufacturer-specified maximum height to use the AquaDash, and allowing people outside the manufacturer-specified age range to use the AquaDash. (FAC, p. 5.) Given this allegation, to meet its initial burden, the City must show one of the following: (1) Neither its placement of the AquaDash nor its allowing people outside the manufacturer-specified age range and height limitation increased the inherent risks of using an aquatic inflatable obstacle course like the AquaDash; or (2) The inherent risks of using a course like the AquaDash include the risk that the provider of the activity will place it in insufficiently deep water or fail to adhere to the manufacturer’s user specifications. (See *Vine, supra*, 118 Cal.App.4th 577, 591; *Luna, supra*, 169 Cal.App.4th 102, 112.)

The City argues merely that “the risk of losing one’s balance and falling off the AquaDash is inherent in the activity[.]” (Memorandum, p. 17.) This is exactly what the First District stated was not enough to shift the burden in *Vine, supra*, 118 Cal.App.4th 577, 591.

The City has attempted to establish that it *did* comply with the AquaDash’s manufacturer’s user specifications in all respects. It does not make this point in connection with its primary assumption of risk argument, but the Court will address it here regardless.

First, the Court is not persuaded that the City’s establishing its compliance with the manufacturer’s user specifications would defeat either of Plaintiff’s claims. Had Plaintiff pleaded that the City created a dangerous condition or breached a duty *exclusively* by failing to adhere to the manufacturer’s user specifications, demonstrating that the City did not do that would defeat Plaintiff’s claims by negating his theory of liability as pleaded. (See *Van v. Target Corp.* (2007) 155 Cal.App.4th 1375, 1387 [“ ‘[A] summary judgment motion is directed to the issues framed by the pleadings.’ . . . ‘[A] party cannot successfully resist summary judgment on a theory not pleaded[.]’ ”] [quoting *Hilton K. v. Greenbaum* (2006) 144 Cal.App.4th 1406, 1412, and *Whelihan v. Espinoza* (2003) 110 Cal.App.4th 1566, 1576].) But the FAC alleges that, whatever the manufacturer’s instructions were, the AquaDash was placed in water too shallow for a person of Plaintiff’s age and/or height to use it safely. (See FAC, pp. 4-5.)

Second, whether the City complied with the AquaDash’s manufacturer’s specifications is a disputed fact. It is undisputed that the AquaDash’s manufacturer’s guidelines set the maximum user height at 1.8 meters. (UMF No. 19; see City’s Ex. B [last page].) It is likewise undisputed

that 1.8 meters is 5 feet, 10.8 inches,² and that Plaintiff is taller than that at 5 feet, 11 inches. (UMF No. 29.) The City's Senior Supervisor for the Recreation Division testified that the City was not following the 1.8-meter manufacturer guideline in August 2023. (Speed Dec., Ex. 1, 90:24-91:3; see also Younkin Dec., ¶ 1.) The City has conceded the materiality of the fact of its compliance with the manufacturer's recommendations for the use of the AquaDash by offering that as an undisputed material fact. (See UMF No. 12 ["At the time of the incident, the City operated the AquaDash in compliance with the manufacturer's recommendations regarding placement, anchoring, and use, and no changes to the installation have been made since the subject incident."]; see *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521.) That the City's compliance with the manufacturer's instructions is disputed precludes summary judgment or adjudication.

The motion is DENIED as to this issue.

Issue 5: "Plaintiff cannot establish more or more elements of Government Code § 815.2, as required to sustain Plaintiff's general negligence cause of action against the City"

The City argues that it necessarily must prevail as to this claim for the same reasons it is entitled to summary adjudication of the dangerous condition claim. Because the Court has found that the City is not entitled to summary adjudication of the dangerous condition claim, it denies summary adjudication as to this issue.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

² Plaintiff states that he disputes "the accuracy of [the City's] calculation that 1.8 meters (as stated in the evidence cited) is equivalent to 5 feet 10.8 inches." (RSS No. 29.) Plaintiff does not provide an alternative calculation or any evidence in support of the idea that the City's calculation is inaccurate. This is not sufficient to establish that the accuracy of the City's calculation is a disputed fact. (See Cal. Rules of Court, rule 3.1350(f)(2).)

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO. CV0007638

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: JPMORGAN CHASE BANK,
N.A.

vs.

DEFENDANT: NIKHILESH N. SINGH

NATURE OF PROCEEDINGS: 1) MOTION - ADMISSIONS - DISCOVERY FACILITATOR PROGRAM
2) MOTION - COMPEL - DISCOVERY FACILITATOR PROGRAM

RULING

Appearances required.

In his (very) untimely opposition, Defendant concedes that he did not respond to Plaintiff's requests for admission. However, he asserts that he has prepared responses and that they will be served before the hearing. Based on this representation, the parties shall be prepared to address whether the responses are in substantial compliance with Code of Civil Procedure section 2033.220.

If substantially compliant responses are served on Plaintiff before the hearing, the motion to deem the requests admitted will be denied as moot. (See Code Civ. Proc., § 2033.280, subd. (c).) It is mandatory under the statute that the Court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated the filing of the motion. (*Id.*) Thus, the parties should be prepared to address what sanctions are appropriate in these circumstances.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0010253

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

IN THE MATTER OF:

J.G. WENTWORTH ORIGINATIONS, LLC

NATURE OF PROCEEDINGS: MOTION - OTHER: PETITION FOR APPROVAL FOR
TRANSFER OF PAYMENT RIGHTS

RULING

Petitioner is seeking judicial approval of the transfer of certain structured payment rights. The Structured Settlement Protection Act, set forth in Insurance Code sections 10134 et seq. (the “Act”), regulates the transfer of beneficial rights under structured settlement agreements. The Act was adopted by the Legislature in order “to protect structured settlement payees from exploitation by factoring companies.” (*RSL Funding, LLC v. Alford* (2015) 239 Cal.App.4th 741, 745.)

To be valid, a transfer of rights requires court approval and express judicial findings, *inter alia*, that the proposed transfer is in the best interest of the payee and will not contravene other applicable laws. (See Ins. Code, § 10139.5.) Because judicial approval is required, the petition filed with the Court must contain the information necessary to make such findings, including the payee’s name, age, marital status, whether there are minor or dependent children, or the amounts or sources of the payee’s income and financial resources. (See Ins. Code, § 10139.5(c).)

The current petition and motion was served on the annuity issuer and the structured settlement obligor. Neither party has opposed or objected to the transfer. The petition is supported by the declaration of the payee/transferor who currently resides in this County. The declaration contains the information required by the Act. Although the payee/transferor was advised to receive independent legal advice, he declined to do so and instead signed a waiver. Based on the information provided by Petitioner and the payee/transferor, the Court finds the transfer is in the best interest of the payee and grants approval to the transfer.